

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
RAHEEM WILSON,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER GREGORY
GROMLING, BADGE NUMBER UNKNOWN,
SERGEANT FERRIRA, BADGE NUMBER UNKNOWN,
AND SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 103RD PRECINCT,Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Queens
County as the place of trial.Basis of venue is place
of occurrence.SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
April 12, 2019
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
RAHEEM WILSON
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER GREGORY GROMLING,
BADGE NUMBER UNKNOWN,
SERGEANT FERRIRA, BADGE NUMBER
UNKNOWN,
103rd Precinct
168-02 91st Avenue
Jamaica, New York 11432

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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RAHEEM WILSON,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER GREGORY
GROMLING, BADGE NUMBER UNKNOWN,
SERGEANT FERRIRA, BADGE NUMBER UNKNOWN,
AND SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 103RD PRECINCT,

VERIFIED COMPLAINT

Defendants.

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Plaintiff RAHEEM WILSON by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned, Defendant POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

6. That at all times hereinafter mentioned, Defendant SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned, Defendant SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

9. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

10. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

12. On January 16, 2018, at approximately 12:30 p.m., Plaintiff RAHEEM WILSON was lawfully at or near the intersection of Archer Avenue and Parsons Boulevard in the County of Queens, City and State of New York when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER GREGORY

GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT.

13. That, at the aforementioned date, time and place, Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, stopped Plaintiff RAHEEM WILSON and asked, in sum and substance, what Plaintiff had in his pockets. Plaintiff RAHEEM WILSON responded that all he had was his wallet. At that time, Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT proceeded to search Plaintiff. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff RAHEEM WILSON's arrest. After the search was completed, Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, placed Plaintiff under arrest for Criminal Possession of Marijuana and Criminal Sale of a Controlled Substance despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

14. That on January 16, 2018, at approximately 12:30 p.m., Defendant CITY OF NEW YORK by and through its employees including Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT without legal process, forcibly, wrongfully and unlawfully arrested Plaintiff RAHEEM WILSON.

15. Plaintiff RAHEEM WILSON was then transported to the 103rd Precinct (168-02 91st Avenue, Jamaica, New York 11432) where his arrest was processed. Plaintiff RAHEEM WILSON was then taken to Queens Central Booking (125-01 Queens Boulevard, New York,

New York 11415) for arraignment. Following arraignment, Plaintiff RAHEEM WILSON was transported to Rikers Island.

16. That on January 16, 2018, Defendants CITY OF NEW YORK by and through its employees including Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, initiated criminal proceedings against Plaintiff RAHEEM WILSON despite Defendants' knowledge that they lacked probable cause to do so.

17. That on or about June 18, 2018, Plaintiff RAHEEM WILSON was acquitted of all criminal charges (Docket/Case Number CR-002786-18QN, Criminal Court of the City of New York - Queens County).

18. That prior to, or within 90 days of, Plaintiff RAHEEM WILSON's release from custody, but more than 30 days prior to the commencement of this action, Plaintiff duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

19. Upon information and belief, the Municipal Hearing regarding the above claim was adjourned upon consent of the parties and has not been rescheduled.

20. This action is commenced within one year and ninety days after the cause of action arose.

21. This action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

22. Plaintiff RAHEEM WILSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

23. That at the aforementioned time and place, Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO

THE 103RD PRECINCT, placed Plaintiff RAHEEM WILSON under arrest despite Defendants' knowledge that he lacked probable cause to do so.

24. That Plaintiff RAHEEM WILSON has not committed any offense and Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

25. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff RAHEEM WILSON and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff RAHEEM WILSON and such actions were committed in bad faith.

26. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff RAHEEM WILSON and such actions were committed in bad faith.

27. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, all committed under color of his authority as a police officer, and while acting in that capacity, Plaintiff RAHEEM WILSON was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and

Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

28. As a further result of the above-described acts, Plaintiff RAHEEM WILSON was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

29. Plaintiff RAHEEM WILSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

30. That Plaintiff RAHEEM WILSON was falsely imprisoned from January 16, 2018 to June 18, 2018, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

31. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT intended to confine Plaintiff RAHEEM WILSON and Plaintiff RAHEEM WILSON was conscious of the confinement, and Plaintiff RAHEEM WILSON did not consent to the confinement.

32. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff RAHEEM WILSON and damaging Plaintiff RAHEEM WILSON in his reputation and depriving him of his liberty.

33. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff RAHEEM WILSON suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

34. Plaintiff RAHEEM WILSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT misrepresented and falsified evidence before the District Attorney.

36. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT did not make a complete and full statement of facts to the District Attorney.

37. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT withheld exculpatory evidence from the District Attorney.

38. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff RAHEEM

WILSON.

39. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff RAHEEM WILSON.

40. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT acted with malice in initiating criminal proceedings against Plaintiff RAHEEM WILSON.

41. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff RAHEEM WILSON.

42. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff RAHEEM WILSON.

43. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT acted with malice in continuing criminal proceedings Plaintiff RAHEEM WILSON.

44. That Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT misrepresented and falsified evidence throughout all phases of the criminal proceeding.

45. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, the criminal proceedings were terminated in Plaintiff RAHEEM WILSON's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

46. Plaintiff RAHEEM WILSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

47. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff RAHEEM WILSON .

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff RAHEEM WILSON as alleged herein.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the

constitutional violations suffered by Plaintiff RAHEEM WILSON as alleged herein.

52. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, while acting under the color of state law, was directly and actively involved in violating Plaintiff RAHEEM WILSON's constitutional rights.

53. All of the foregoing acts by Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT deprived Plaintiff RAHEEM WILSON of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

54. Plaintiff RONALD WRIGHT repeats, reiterates and realleges each and every allegation contained in this complaint.

55. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff RAHEEM WILSON's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

56. As a result of the aforementioned conduct of the individual Defendants, Plaintiff RAHEEM WILSON's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

57. Plaintiff RAHEEM WILSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

58. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT arrested Plaintiff RAHEEM WILSON in the absence of probable cause and without a warrant.

59. As a result of the aforesaid conduct by Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff RAHEEM WILSON was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

60. The aforesaid actions by Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT constituted a deprivation of Plaintiff RAHEEM WILSON's rights.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

61. Plaintiff RAHEEM WILSON repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

62. As a result of the foregoing, Plaintiff RAHEEM WILSON was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

63. Plaintiff RAHEEM WILSON was conscious of said confinement and did not consent to same.

64. The confinement of Plaintiff RAHEEM WILSON was without probable cause and was not otherwise privileged.

65. As a result of the aforementioned conduct, Plaintiff RAHEEM WILSON has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW**

66. Plaintiff RAHEEM WILSON repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

67. On or about January 16, 2018, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, commenced a criminal proceeding against Plaintiff RAHEEM WILSON, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

68. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT continued said proceeding despite the fact that they knew or should have known that Plaintiff RAHEEM WILSON had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

69. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff RAHEEM WILSON.

70. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff RAHEEM WILSON.

71. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were motivated by actual malice in initiating criminal proceedings against Plaintiff RAHEEM WILSON.

72. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT misrepresented and falsified evidence before the District Attorney.

73. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT did not make a complete and full statement of facts to the District Attorney.

74. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT withheld exculpatory evidence from the District Attorney.

75. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff RAHEEM WILSON.

76. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL

UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff RAHEEM WILSON.

77. Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were motivated by actual malice in continuing criminal proceedings against Plaintiff RAHEEM WILSON.

78. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, the criminal proceedings were terminated in Plaintiff RAHEEM WILSON' favor.

AS AND FOR A NINTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION
UNDER NEW YORK STATE LAW

79. Plaintiff RAHEEM WILSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

80. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW

YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

81. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION
UNDER NEW YORK STATE LAW**

82. Plaintiff RAHEEM WILSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

83. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff RAHEEM WILSON. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

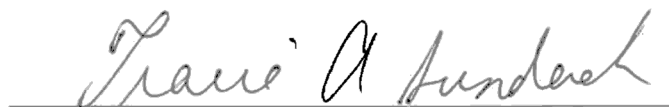
84. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including

Plaintiff RAHEEM WILSON.

85. As a result of the foregoing, Plaintiff RAHEEM WILSON is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiff RAHEEM WILSON demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER GREGORY GROMLING, BADGE NUMBER UNKNOWN, SERGEANT FERRIRA, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
April 12, 2019

A handwritten signature in cursive script, reading "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
RAHEEM WILSON
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
April 12, 2019



TRACIE A. SUNDACK